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COIN331: Applied Networking

14 November 2005

Music Industry vs. Music Fans

In the late 1980s, record companies profited from CD sales to individuals that wanted to replace their vinyl LP record collections with higher quality and more portable media (McLeod par 20-21).

Fifteen years later, "the RIAA [Recording Industry Association of America] has filed 14,800 lawsuits against individuals for illegally downloading and distributing copyrighted music on the Internet" (Baldas par 5). Stanley Pierre-Louis, senior vice president for legal affairs at the RIAA "defended the RIAA's litigation campaign, saying piracy continues to be a big threat to the music industry, which loses \$4.2 billion a year to worldwide piracy" (Baldas par 15). Illegally downloading and distributing copyrighted music is wrong. Both the RIAA and the FBI are intent on stopping music piracy by individuals and companies ("Justice" par 2-4). However, the RIAA's lawsuits appear to be strictly about money for the RIAA and not about compensating recording artists for their work.

Daphne Clark, entertainment attorney at Brown University, states, "An artist has two rights to his music. First he has the right to the sound recording itself. Second, he holds the rights to the lyrics and music notes...File sharing violates the first of these rights" (Almog par 1-2). Illegal file sharing "hurts the [music] industry...It will not be tolerated, and there's a price to pay if you do it. In most cases, that price is about \$4000 to \$5000, which is what most suits settle for" (Baldas par 16). However, Ray Beckerman, an attorney in New York, believes that "the music industry has gone too far in its fight against piracy" (Baldas par 19). His firm, Beldock Levine & Hoffman, "has set up a Web site seeking defendants who feel that they have been wrongly sued by the RIAA" (Baldas par 19). He is handling three RIAA cases, one of which is defending a New York mother of five children who claims "the file-sharing program on her computer was not used by her or her family, but by one of her children's friends" (Baldas par 21). Beckerman also notes, "When they [the RIAA] negotiate a settlement, they refuse to negotiate. They give

you a number. It's hard and fast – take it or leave it.” (Baldas par 20). Attorney Lory Lybeck, an attorney in Mercer Island, Washington, said, “the RIAA’s notification tactics have baffled many defendants...The actions first start out as John Doe suits, where the music industry subpoenas Internet service providers, asking them to identify to whom a nine-digit computer codes belong. When an Internet service provider releases the names, the individuals are then summoned with notices that they are being sued” (Baldas par 27). Lybeck has filed a counterclaim on one of his clients behalf “alleging, among other things, abuse of legal process, invasion of privacy and electronic trespassing” (Baldas par 29). However, Professor Sharon Sandeen of the Hamline University School of Law in St. Paul Minnesota does not fault the RIAA for their tactics but cautions “the music industry against pursuing the suits strictly for money...The suits should focus on educating the public about copyright laws and how they promote and protect the arts. If they make it about getting money they’re going to subject themselves to even more criticism and ridicule than they’re currently getting” (Baldas 37-38).

The music industry has also filed suit against file sharing software companies. The latest to lose the battle is Grokster. Grokster has “agreed to shut down and pay \$50 million to settle piracy complaints by Hollywood and the music industry” (Bridis par 1). In June 2005, “Grokster lost before the U.S. Supreme Court when justices ruled that the entertainment industry can file piracy lawsuits against technology companies caught encouraging customers to steal music and movies over the Internet. The decision ... significantly weakened companies that had blamed illegal behavior on their own customers rather than their technology that made such behavior possible” (Bridis par 12-13). Compare this settlement to RIAA settlement with the iMesh file-sharing network in July 2004. iMesh only had to pay \$4.1 million and immediately halt “any exchange of bootlegged songs” (Chmielewski par 1-2). RIAA Chairman Mitch Bainwol stated “The constructive approach of iMesh stands in stark contrast to other file-sharing businesses who thumb their noses at Congress, continue to offload liability onto users, and dupe America’s kids into breaking the law” (Chmielewski par 6).

Although the RIAA’s tough stance against music piracy by individuals and companies appears to be a good thing, McLeod states “Despite the fact that – in the name of musicians – the Recording Industry

Association of America (RIAA) has filed copyright infringement lawsuits against downloading music fans, that same industry has never treated those musicians fairly or equitably” (par 2). McLeod believes that “file sharing and other forms of Internet distribution are seen as a threat by the RIAA (and the major labels that it represents) because these new technologies threaten to erode their market hegemony” (par 3). “The vast majority of musicians do not make money from album sales, which end up benefiting only a very, very small minority of artist like Madonna, Metallica, or Aerosmith” (McLeod par 9). Platinum selling artists can make more money working at a convenience store (McLeod par 10). McLeod also brings up another interesting point. He states, “While there are always going to be freeloaders who will never pay for music, that does not characterize the majority of fans who share music. A study of file sharers conducted in 2000 by the Norman Lear Center at the University of Southern California backs up these anecdotes with numbers. It stated: ‘MP3 usage does not reduce student’s CD consumption patterns. Fully 73 percent of students who download MP3s reported that they still bought either the same number of CDs or more’. Those who are most likely to trade with friends are the very people who buy the most CDs.” (par 16). “Rich Egan, co-owner of Vagrant Records, believes that file trading helps his label compete against major labels with larger marketing budgets” (McLeod par 36). He states “Our music, by and large, when kids listen to it, they share it with their friends. Then they go buy the record; they take ownership of it” (McLeod par 36).

In conclusion, the RIAA appears to be successful in their goals if the goal is to get money out of the individual or company pirating their music. However, the focus should be on the artist and the intellectual property of the artist and not the music industry. “You share some things, but you also support others by purchasing their creative work. People will only stop supporting musicians and other artists when the concept of community breaks down, not because of the introduction of a new technology (like radio or the Internet). When the owners of VCRs and audiocassette recorders realized they could make copies, and never have to pay for content again, it didn’t mean the vast majority of people did. The same is true for unauthorized file sharing...However, these technological changes do threaten to help

break up the music monopoly that has existed for a century, something that, at the very least, will increase the diversity of music available to music fans” (McLeod par 42).

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COINS 326: Java II Programming
5 December 2005

The Ethics of Connecting to Open Wireless Access Points

In April 2005, Benjamin Smith was arrested for connecting to the wireless access point of Richard Dinon in St. Petersburg, Florida ("Florida", par 1-3). Dinon had noticed Smith using a laptop computer in an SUV outside of Dinon's house ("Florida", par 3). Smith was charged with "unauthorized access to a computer network [which is a] third-degree felony" ("Florida", par 2). This felony "carries a potential sentence of up to five years in prison" (Wexler, par 7). The details of this case have not been released. For example, Dinon's wireless access point may not have been secured. However, it is unethical to use broadband Internet through an open wireless access point without prior authorization.

Here is an example of authorization to an open wireless access point. "When Tony Guagliardo moved to Manhattan's East Fourth Street, he didn't know anyone in the neighborhood. Then one day, while trying to get wireless Internet in his apartment, he noticed an open Wi-Fi network named Neighbornode. He chose it, launched his browser, and a message board popped up welcoming him to the Fourth Street Avenue B Node. The network had been set up by a local resident who wanted to share his Internet connection" (Todras-Whitehill, par 2). The reason why this is an example of authorization to an open wireless access point is because the connection authorized its use before the user used the connection to connect to the Internet. If a user does not have permission to use an open wireless access point to connect to the Internet, the user should assume that the network is private and disconnect from the open network.

According to Vakil, "Security has been one of the major problems with wireless networks. By default, a wireless network is designed to provide easy access. Generally, wireless networks need to announce their existence so that potential users can link up and use the services provided by the network. However, radio signals traveling through the open atmosphere can be intercepted by individuals in the vicinity who have access to wireless devices with the right software for interception" (Vakil, par 9). He also notes, "Generally, home computer users are not security experts and may not be aware of the risks posed by wireless networks" (Vakil, par 13). Private networks left open by home computer users are not always left open intentionally. Wildstrom states, "Taking advantage of your neighbor's unsecured network without permission is definitely unethical and possibly illegal. In effect, you are stealing service paid for by your neighbor" (Wildstrom, par 6).

"The Computer Fraud and Abuse Act (CFAA) makes punishable whoever intentionally accesses a computer without authorization" (Hale, par 6). "Although Congress intended the CFAA to apply to theft-related acts, some courts have interpreted information obtained as 'the showing of some additional end—to which the unauthorized access is a means.' In this regard, access to any [wireless access point] involves some exchanging of information that typically passes between computers (IP address, data packets, etc.) as a means of gaining access to the

Internet. Since the statute does not specify exactly what information the end user must obtain, the end user who accesses a neighbor's [wireless access point] has potentially committed a misdemeanor violation of section 1030(a)(2) [of the CFAA], which could then rise to the level of a felony if the access involved commercial advantage or private financial gain" (Hale, par 12). Hale then notes that is unlikely that someone would be prosecuted for simply using someone else's access point "to check e-mail or to perform other common, relatively unobtrusive acts...In such a scenario, the end user does not access the Internet to obtain information [from the wireless access point operator], but rather to simply access the Internet" (Hale, par 12). However, it is possible in St. Petersburg, Florida case that the defendant is being charged for using someone else's access point to simply access the Internet.

In conclusion, "until the courts and legislatures better define the legal status of Wi-Fi arrangements, the piggy-backing Wi-Fi user should simply stop the practice of accessing other's open [wireless access points], absent an explicit agreement or notice" (Hale, par 32). It is unethical and possibly unlawful to use broadband Internet from an open network. "If someone downloads unauthorized copies of music files using another's [wireless access point], and thereby commits copyright infringement, vicarious liability for the infringement may attach to the [wireless access point operator]" (Hale, par 29-30). It is very unethical to deliberately put the wireless access point operator in this type of legal situation.

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Video Game Violence

The performance of today's computers provides much more realistic video games than computers of a decade ago. "In the '80s or early '90s, shooting an opponent resulted in the collapse of that figure on the screen. Today's graphics provide gore, flying body parts, realistic writhing and screams of pain" (Herzfeld par 6). The video game "Manhunt, for example, puts you into reportage-style action by playing with the grainy feel of televisual images and portraying killings in vivid detail while a crazed voice whispers encouragement in your ear. As the lead character in a fictional gameshow, your objective is to stay alive by killing those sent to hunt you down. All the while, the show's director wants you to make your killing more gruesome to appeal to his audience" (Poole par 7). The realistic violence in video games such as Manhunt and Grand Theft Auto are questioned when avid fans of these video games commit violence in real life. "There is an Alabama civil suit that charges video-game makers and sellers with abetting the murder of two police officers and a police dispatcher in Fayette, Alabama. [In 2003,] 20-year-old Devin Moore, convicted of the triple homicide, was sentenced to death ... after Fayette County Circuit Judge Moore disallowed the cornerstone of his defense, which claimed that Devin Moore's addiction to Grand Theft Auto inspired the killings" (Irwin par 8). Willie Crump, whose son, James, was one of the officers murdered states, "Everything [Moore] did is right from Grand Theft Auto" (Tresniowski par 2). Although few people that play violent games commit violent acts, these violent acts are serious enough that a brother of one of the officers murdered notes, "We have to look at the one kid who will play these games intently until it's ingrained in their mind that they can do this in real life" (Tresniowski par 6). Understanding what is currently done about violent video games and what should be done about video games is the first step to tackling this problem.

There are currently no laws in the United States that restrict the sale of violent video games to minors. Recently, the governor of California has "appealed a federal court ruling that permanently struck down the state's ban on selling explicitly violent video games to children" (Yamamura par 1). California's law would have retailers "in violation ... fined up to \$1000" (Garcia par 7). One of the reasons that the law was struck down was that the language defining games "could literally apply to some classic literature if put in the form of a video game" (Yamamura par 15). "A federal judge in Detroit struck down a state law banning the sale or dissemination of ultra-violent games to minors" because the law "violates the free speech provisions of the U.S. Constitution and was so vague that it would have forced retailers and store owners to decide which games were to be banned" (Ashenfelter par 1). Illinois laws prohibiting "anyone younger than 18 to buy or rent video games intended for adults" ("No

more" par 1-2) were struck down because "there was no evidence presented to support the view that playing violent video games has a lasting effect on aggressive thoughts and behavior" ("Court" par 6). Although "more than 28 states have attempted to restrict the sale of violent video games to minors" (Irwin par 3), no state has a law in effect.

The results of many studies show that something should be done about video game violence. "The American Psychological Association's Resolution on Violence in Video Games and Interactive Media, passed in 2005, was based on a review of the comprehensive body of scientific research. Findings indicated that exposure to violent media increases aggressive behavior in children and youth. This exposure increases feelings of hostility, thoughts about aggression, and suspicions about the motives of others, and demonstrates violence as a method to deal with conflict" (Carll par 2). "APA scholars cited a study of eighth- and ninth- grade teachers. The teachers said that students who spent time playing violent video games were more hostile than other children and more likely to argue with authority figures and fellow students. And according to another study of 600 eighth- and ninth- graders, students not normally prone to aggression are nearly 10 times as likely to get into a fight after playing a violent video game" ("Deadening" par 4). Although most studies have noted the short term effects of violent video games, one study has found that exposure "to real-life violent video games not only increases aggression in the short-term but delinquency in the long-term ... Learning and repeatedly practicing aggressive situations may alter children's basic personality structures, leading to more hostile thoughts and [improper] changes in social interactions" (Vessey par 12). Another study has "found that participants who played a violent video game tended to expect others to react to potential conflicts with aggression to a greater extent than did participants who played a nonviolent video game" (Cicchirillo par 11). In other words, playing a violent video game may lead one to react to a situation more aggressively than someone that played a nonviolent video game. Aggressive games may cause problems for a minor in their formative years because they do not have enough life experience to determine when aggressiveness is warranted and when it is not warranted. Something should be done to restrict minors from accessing violent video games.

However, no state has been able to pass a law restricting violent video games and not have that law overturned. Each overturned law has also required payment to the video game industry of legal fees upwards of hundreds of thousands of dollars ("Entertainment" par 4). It up to parents and vendors to restrict the sale of violent video games to minors. Herzfeld notes that "the Entertainment Software Rating Board has come up with a system designed to keep the most violent games out of the hands of young children. But this system is [not] understood by

parents” (par 7). “Sean Bersell, a spokesman with the Entertainment Merchants Association, which represents retailers such as Target and Circuit City, said the industry polices itself by using a strong ratings system that already blocks minors from purchasing the most explicit games. Bersell compared the Entertainment Software Rating Board to long-standing system used by the motion picture industry. In both cases, he said, the industries prevent children from watching unsuitable material. Retailers ask for identification when anyone younger than 17 seeks to purchase games rated M for ‘mature’” (Yamamura par 7-9). Therefore, parents need to understand the Entertainment Software Rating Board (ESRB) and contact the corporate offices of vendors that sell mature video games to minors.

In conclusion, the violence in video games is more realistic today than it has been only a decade ago. There are occasions where violent acts in society are committed by people addicted to violent video games. But since there is no conclusive proof that violent video games trigger violent acts, there are currently no laws to restrict the sale of violent video games to minors. Many scientific studies have shown a link between violent video games and short term aggressive behavior, but more studies need to be performed to understand the effects of violent video games on long term behavior. Parents should not wait for conclusive studies while their children are in their formative years, but should only purchase video games that they understand to be suitable for their children and review the video game content with their children. Although there are no laws to restrict the sale of violent video games to minors at this time, Michal Pachter, a research analyst predicts, “I think politicians are going to get a bit more clever about how to craft these laws” (Garcia par 25).

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Presentation Introductory Page

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